

26STCV07460 26STCV07460

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Case Number: 26STCV07460 Hearing Date: August 13, 2026 Dept: 735

Kang v. Los

Angeles Korean Presbyterian Church Corp., et al.

Esther Inja Choe's

Demurrer to First Amended Complaint

On

March 5, 2026, Plaintiff Hwa Chong Kang filed the complaint for unlawful detainer against Defendants Los Angeles Korean 1st Presbyterian Church Corporation and Esther Inja Choe ("Choe"), individually and dba as LA First Montessori School. On March 23, 2026, Defendant Esther Inja Choe filed a demurrer. On April 9, 2026, Plaintiff filed a First Amended Complaint that corrected the name of Plaintiff to 213 Hobart, LLC, in place of Hwa Chong Kang. Defendant Choe demurs to the first amended complaint.

DISCUSSION

Amendment

Defendant

demurs to the FAC on the ground that the newly replaced Plaintiff improperly filed this First Amended Complaint naming Plaintiff as the "new" plaintiff replacing the original party without obtaining leave of court. Defendant argues that this is an unauthorized substitution of an entirely new party. As such according to Defendant, the first amended complaint is procedurally defective and subject to demurrer. Plaintiff opposes, stating that the original complaint erroneously named Kang, rather than the Plaintiff to which she had already conveyed the Premises, as plaintiff. Defendant has not provided authority which prohibits the changes Plaintiff made. (Compare Code of Civ. Proc. § 472.) The demurrer on this ground is overruled.

Unlawful
Detainer

Defendant demurs on the ground that Plaintiff has failed to state a cause of action for unlawful detainer. The elements of unlawful detainer for nonpayment of rent are (1) the tenant is in possession of the premises; (2) possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written three-day notice; and (5) the default continues after the three-day notice period has elapsed.

The FAC alleges each element: the Premises were sold at the March 13, 2025 trustee's auction under the power of sale in a deed of trust executed by the Former Owner, the person under whom Defendant claims, since Defendant's occupancy rests on "an agreement made with the Former Owner" (FAC ¶¶ 2, 4, 6 & Ex. A); title under the sale was duly perfected by recordation of the Trustee's Deed Upon Sale on March 14, 2025 (FAC ¶ 2 & Ex. A); Plaintiff now holds that title as sole owner of the Premises (FAC ¶ 1-2); a written three-day notice to quit was served on Defendant on February 3, 2026, in the manner prescribed by section 1162 (FAC ¶¶ 118-9 & Exs. B, C); more than three days have elapsed; and Defendant continues in possession without consent (FAC 7, 10-12), at a fair daily rental value of no less than \$1,600.00. (FAC ¶ 13).

The unlawful detainer cause of action is sufficiently pleaded. The demurrer to this ground is overruled.

CONCLUSION

The demurrer is overruled.

Defendant shall give notice.